

SOLVED PRACTICE WORKBOOK

Anti-Defection Law - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Anti-Defection Law - Solved Practice Workbook

Subject: Polity | **GS Paper:** GS-II | **Control date:** 8 September 2026

Practice discipline: exactly 32 original MCQs before PYQs; answer order ABCD repeated eight times; 128 substantive option-specific explanations; 32 question-specific traps; verified relevant PYQs with official-key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before the PYQ section. Questions 25-32 are targeted remediation. Correct-answer sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.

BASIC MCQS / REMEDIATION

MCQ 1. 52nd Amendment architecture

Which statement correctly describes the 52nd Amendment?

A. It inserted the Tenth Schedule and amended Articles 101, 102, 190 and 191. B. It inserted the Tenth Schedule but left seat-vacancy Articles untouched. C. It created only a statutory, not constitutional, disqualification. D. It omitted paragraph 3 and inserted Article 361B.

Answer: A. It inserted the Tenth Schedule and amended Articles 101, 102, 190 and 191.

Option-specific explanations:

- **A:** Correct: the four Articles and Tenth Schedule form the 1985 constitutional design.
- **B:** Incorrect: Articles 101 and 190 were amended to connect disqualification with vacancy.
- **C:** Incorrect: the ground is constitutional through Articles 102(2) and 191(2).
- **D:** Incorrect: those are 91st-Amendment changes effective in 2004.

Examiner trap 1: Separate the 52nd Amendment's creation from the 91st Amendment's tightening.

MCQ 2. Article decoder

Article 102(2) means that a person is disqualified for Parliament when:

A. the Election Commission independently declares a party split. B. the person is disqualified under the Tenth Schedule. C. the Council of Ministers advises the President to remove the member. D. the House passes an ordinary resolution by simple majority.

Answer: B. the person is disqualified under the Tenth Schedule.

Option-specific explanations:

- **A:** Incorrect: ECI does not independently decide paragraph 2 membership.
- **B:** Correct: Article 102(2) imports the Tenth Schedule ground for either House of Parliament.
- **C:** Incorrect: ministerial advice is not the paragraph 6 decision route.
- **D:** Incorrect: House resolution is not the constitutional test.

Examiner trap 2: Do not confuse Article 102(2) with Article 103 procedure for Article 102(1) questions.

MCQ 3. Paragraph 1 definitions

Which entity is the House-specific group of members belonging to one political party?

A. Original political party. B. Election symbol group. C. Legislature party. D. Coalition bloc.

Answer: C. Legislature party.

Option-specific explanations:

- **A:** Incorrect: original political party identifies organisational belonging for paragraph 2(1).
- **B:** Incorrect: symbol classification belongs to the Election Commission's separate field.
- **C:** Correct: paragraph 1 defines the legislature party by membership in that House.
- **D:** Incorrect: coalition cooperation does not create the defined legislature party.

Examiner trap 3: The political party and legislature party cannot be swapped in whip and merger analysis.

MCQ 4. Voluntary giving up

Ravi S. Naik (1994) is authority for which proposition?

A. Only a signed resignation proves defection. B. Party expulsion automatically ends deemed belonging. C. Courts must decide every petition before the Speaker. D. Voluntary giving up may be inferred from conduct without formal resignation.

Answer: D. Voluntary giving up may be inferred from conduct without formal resignation.

Option-specific explanations:

- **A:** Incorrect: the case rejects a resignation-only test.
- **B:** Incorrect: G. Viswanathan controls the expulsion issue.
- **C:** Incorrect: paragraph 6 leaves first-instance adjudication with the presiding officer.
- **D:** Correct: substantive conduct can establish abandonment of allegiance.

Examiner trap 4: Inference from conduct must still be supported by context, evidence and fair hearing.

MCQ 5. Whip test

A party member votes contrary to a valid direction without prior permission, but the authorised party authority condones the vote on day 12. The best conclusion is:

A. Paragraph 2(1)(b) is not completed because timely condonation cures the contrary vote. B. Disqualification is automatic at the moment of voting and cannot be cured. C. Condonation is effective only if granted by the Election Commission. D. The member remains disqualified unless two-thirds support the vote.

Answer: A. Paragraph 2(1)(b) is not completed because timely condonation cures the contrary vote.

Option-specific explanations:

- **A:** Correct: the text allows condonation within fifteen days by the authorised source.
- **B:** Incorrect: the constitutional cure period disproves automatic final liability.
- **C:** Incorrect: ECI is not the condoning authority under paragraph 2(1)(b).
- **D:** Incorrect: two-thirds belongs to paragraph 4 merger, not whip condonation.

Examiner trap 5: Prior permission and fifteen-day condonation are distinct routes.

MCQ 6. Dissent boundary

Which act, standing alone, least directly completes paragraph 2(1)(b)?

A. Abstaining contrary to a valid direction without permission. B. Delivering a critical speech without a contrary vote or abstention. C. Voting contrary to a valid direction without permission. D. Remaining absent where abstention itself violates a valid direction.

Answer: B. Delivering a critical speech without a contrary vote or abstention.

Option-specific explanations:

- **A:** Incorrect: contrary abstention is expressly covered.
- **B:** Correct: paragraph 2(1)(b) regulates voting or abstention, not speech by itself.
- **C:** Incorrect: contrary voting is the central textual trigger.
- **D:** Incorrect: an abstention contrary to direction may be covered on the facts.

Examiner trap 6: Do not convert political dissent into disqualification without matching a paragraph 2 ground.

MCQ 7. Independent member

An independently elected MLA becomes a formal member of a political party two months after election. Under paragraph 2:

A. The joining is protected for six months. B. The joining is protected if no whip is issued. C. The member is disqualified; independents have no six-month joining window. D. The member is protected if the party is part of the governing coalition.

Answer: C. The member is disqualified; independents have no six-month joining window.

Option-specific explanations:

- **A:** Incorrect: six months is the nominated-member rule.
- **B:** Incorrect: paragraph 2(2) turns on joining, not whip issuance.
- **C:** Correct: joining any political party after election attracts the independent-member ground.
- **D:** Incorrect: coalition status does not alter paragraph 2(2).

Examiner trap 7: Never transfer the nominated member's grace period to an independent.

MCQ 8. Nominated member

A person nominated to a House while unaffiliated first joins a party five months after taking the seat. Which is correct?

A. Joining is always prohibited for a nominated member. B. The President must first approve the joining. C. The member is treated as an independent forever. D. Joining within six months is permitted and fixes deemed party belonging.

Answer: D. Joining within six months is permitted and fixes deemed party belonging.

Option-specific explanations:

- **A:** Incorrect: the Schedule expressly permits the bounded initial choice.
- **B:** Incorrect: no presidential approval appears in paragraph 2(3).
- **C:** Incorrect: nomination and independent election are separate categories.
- **D:** Correct: the clock runs from taking the seat and the first timely party becomes relevant.

Examiner trap 8: The six months run from taking the seat, not nomination.

MCQ 9. Paragraph 3

What is the current status of the former one-third split defence?

A. It was omitted by the 91st Amendment and is no longer available. B. It survives for State legislatures but not Parliament. C. It survives whenever the Governor recognises a faction. D. It was converted into the paragraph 5 exemption.

Answer: A. It was omitted by the 91st Amendment and is no longer available.

Option-specific explanations:

- **A:** Correct: paragraph 3 was deleted with effect from 1 January 2004.
- **B:** Incorrect: deletion applies across the Tenth Schedule.
- **C:** Incorrect: gubernatorial recognition cannot revive omitted text.
- **D:** Incorrect: paragraph 5 concerns listed presiding officers.

Examiner trap 9: A one-third faction has no current split safe harbour.

MCQ 10. Merger elements

Which statement best states paragraph 4?

A. Any two-thirds of an original political party nationwide must merge. B. Protection operates within an original-party merger framework when at least two-thirds of the legislature party agree. C. Election Commission symbol recognition alone conclusively proves merger. D. A post-election coalition is automatically deemed a merger.

Answer: B. Protection operates within an original-party merger framework when at least two-thirds of the legislature party agree.

Option-specific explanations:

- **A:** Incorrect: the threshold is measured in the legislature party concerned, not nationwide membership.
- **B:** Correct: both original-party language and the two-thirds deeming rule matter.
- **C:** Incorrect: symbol jurisdiction and paragraph 4 adjudication are separate.
- **D:** Incorrect: coalition and organisational merger are distinct.

Examiner trap 10: Two-thirds is not a free-standing licence to switch parties.

MCQ 11. Non-accepting members

If paragraph 4 is validly engaged, members who do not accept the merger and opt to function as a separate group are:

A. automatically treated as independents for every purpose. B. required to join the merged party within fifteen days. C. protected in the manner specified by paragraph 4. D. disqualified unless the Governor recognises them.

Answer: C. protected in the manner specified by paragraph 4.

Option-specific explanations:

- **A:** Incorrect: paragraph 4 supplies a specific deemed political status, not generic independence.
- **B:** Incorrect: the fifteen-day rule concerns whip condonation.
- **C:** Correct: paragraph 4 expressly protects the non-accepting separate group.
- **D:** Incorrect: the Governor is not the paragraph 4 decider.

Examiner trap 11: Remember both protected choices under paragraph 4, not only the accepting group.

MCQ 12. Paragraph 5

Which office is expressly within paragraph 5's party-neutrality exemption?

A. Prime Minister. B. Chairperson of every House committee. C. Chief Whip. D. Deputy Chairman of the Rajya Sabha.

Answer: D. Deputy Chairman of the Rajya Sabha.

Option-specific explanations:

- **A:** Incorrect: ministerial office is not paragraph 5's neutrality route.
- **B:** Incorrect: committee chairs are not generically listed.
- **C:** Incorrect: a whip represents party discipline, not the protected chair.
- **D:** Correct: the Deputy Chairman of the Council of States is listed.

Examiner trap 12: The Rajya Sabha Chairman is ex officio Vice-President and is not the listed member-office.

MCQ 13. Paragraph 6 decider

Who ordinarily decides whether a Lok Sabha member is disqualified under the Tenth Schedule?

A. The Speaker of the Lok Sabha. B. The President on advice of the Union Council of Ministers. C. The Election Commission acting alone. D. A High Court as original fact-finder.

Answer: A. The Speaker of the Lok Sabha.

Option-specific explanations:

- **A:** Correct: paragraph 6 assigns the question to the Speaker.

- **B:** Incorrect: this misstates both the advice source and the applicable procedure.
- **C:** Incorrect: ECI's opinion belongs to different constitutional questions.
- **D:** Incorrect: judicial review does not ordinarily replace first-instance adjudication.

Examiner trap 13: Do not import Article 103 procedure into Article 102(2).

MCQ 14. Speaker concerned

If the disqualification question concerns the Speaker personally, paragraph 6 requires decision by:

A. the Deputy Speaker automatically. B. a member elected by the House for that purpose. C. the Election Commission after hearing the Speaker. D. the Governor or President, depending on the House.

Answer: B. a member elected by the House for that purpose.

Option-specific explanations:

- **A:** Incorrect: the proviso does not automatically designate the Deputy Speaker.
- **B:** Correct: the House elects a member to decide the question.
- **C:** Incorrect: paragraph 6 does not transfer the matter to ECI.
- **D:** Incorrect: the executive head is not the proviso's substitute.

Examiner trap 14: Use the exact House-elected-member proviso.

MCQ 15. Paragraph 7

Which is the legally accurate description of paragraph 7?

A. It was omitted by the 91st Amendment. B. It validly excludes every form of judicial review. C. Its court-ouster text remains printed but is invalid under Kihoto for want of ratification. D. It gives first-instance power to the Supreme Court.

Answer: C. Its court-ouster text remains printed but is invalid under Kihoto for want of ratification.

Option-specific explanations:

- **A:** Incorrect: paragraph 3, not paragraph 7, was omitted.
- **B:** Incorrect: Kihoto preserved constitutional judicial review.
- **C:** Correct: text and invalid legal effect must be stated together.
- **D:** Incorrect: paragraph 6 still allocates first instance to the presiding officer.

Examiner trap 15: Never quote the ouster text without Kihoto's invalidity holding.

MCQ 16. Kihoto review

Kihoto Hollohan permits judicial review principally for:

A. a complete rehearing of every factual disagreement. B. review only when the Election Commission consents. C. review only after the House term expires. D. constitutional violation, mala fides, natural-justice breach and perversity.

Answer: D. constitutional violation, mala fides, natural-justice breach and perversity.

Option-specific explanations:

- **A:** Incorrect: review is supervisory, not an ordinary appeal.
- **B:** Incorrect: ECI consent is not a jurisdictional gateway.
- **C:** Incorrect: review need not await expiry of the House.
- **D:** Correct: these are the controlled review grounds.

Examiner trap 16: Finality under paragraph 6 is compatible with limited judicial review.

MCQ 17. Paragraph 8

Paragraph 8 rules may validly provide for:

A. records, leader reports and procedure for deciding disqualification questions. B. new substantive grounds beyond paragraph 2. C. removal of the natural-justice requirement. D. automatic disqualification solely on party complaint.

Answer: A. records, leader reports and procedure for deciding disqualification questions.

Option-specific explanations:

- **A:** Correct: these are within the procedural rule-making field.
- **B:** Incorrect: subordinate House rules cannot amend the Schedule.
- **C:** Incorrect: fairness remains constitutionally required.
- **D:** Incorrect: complaint initiates inquiry; it does not itself prove liability.

Examiner trap 17: Procedure operationalises the Schedule but cannot rewrite it.

MCQ 18. Rajendra Singh Rana

Rajendra Singh Rana (2007) is most safely used for which proposition?

A. A one-third split remains valid today. B. Unsupported split recognition and disabling inaction cannot defeat the Schedule. C. The Election Commission must decide merger before the Speaker. D. A Speaker may recognise a faction without deciding pending petitions.

Answer: B. Unsupported split recognition and disabling inaction cannot defeat the Schedule.

Option-specific explanations:

- **A:** Incorrect: paragraph 3 has since been omitted.
- **B:** Correct: the Court addressed non-decision and inadequate proof.
- **C:** Incorrect: the case does not create that sequencing rule.
- **D:** Incorrect: that was the adjudicatory failure condemned.

Examiner trap 18: Use the case as anti-inaction authority, not as revival of deleted paragraph 3.

MCQ 19. Expulsion

After G. Viswanathan (1996), expulsion of a legislator from the party:

A. automatically makes the legislator an independent. B. automatically vacates the legislative seat. C. does not erase deemed belonging to the original party for Schedule purposes. D. transfers defection jurisdiction to the Election Commission.

Answer: C. does not erase deemed belonging to the original party for Schedule purposes.

Option-specific explanations:

- **A:** Incorrect: deemed belonging continues.
- **B:** Incorrect: expulsion and constitutional disqualification are distinct.
- **C:** Correct: the member cannot claim independent status merely from expulsion.
- **D:** Incorrect: paragraph 6 allocation remains unchanged.

Examiner trap 19: Expulsion is not itself the same legal event as Tenth Schedule disqualification.

MCQ 20. Resignation

A resignation tendered after alleged disqualifying conduct:

A. necessarily ends all Speaker jurisdiction. B. can be ignored forever without examining genuineness. C. automatically creates a term-long election ban. D. does not erase jurisdiction over antecedent defection.

Answer: D. does not erase jurisdiction over antecedent defection.

Option-specific explanations:

- **A:** Incorrect: Shrimanth rejects resignation as an automatic jurisdictional escape.
- **B:** Incorrect: resignation has its own constitutional inquiry.
- **C:** Incorrect: the Speaker cannot invent that additional disability.
- **D:** Correct: prior conduct remains adjudicable.

Examiner trap 20: Separate resignation validity, defection liability and later electoral eligibility.

MCQ 21. Keisham timing

Which statement accurately describes Keisham Meghachandra Singh (2020)?

A. It stated an ordinary three-month decision norm absent reasoned exceptional circumstances. B. It amended the Tenth Schedule to insert a ninety-day deadline. C. It permanently transferred all petitions to a retired-judge tribunal. D. It abolished judicial review of Speaker inaction.

Answer: A. It stated an ordinary three-month decision norm absent reasoned exceptional circumstances.

Option-specific explanations:

- **A:** Correct: the Court supplied an ordinary constitutional time norm.
- **B:** Incorrect: judicial decision did not amend the Schedule's text.
- **C:** Incorrect: tribunal was recommended to Parliament, not created.
- **D:** Incorrect: the case strengthens control over delay.

Examiner trap 21: Three months is a judicial benchmark, not express bare text.

MCQ 22. Nabam status

As of 8 September 2026, the safest statement on Nabam Rebia is:

A. It has been overruled by Parliament. B. Its removal-notice rule stands, while Subhash Desai referred its correctness for larger-bench reconsideration. C. It concerns resignation of ordinary members. D. It gives the Governor final power over defection.

Answer: B. Its removal-notice rule stands, while Subhash Desai referred its correctness for larger-bench reconsideration.

Option-specific explanations:

- **A:** Incorrect: no constitutional amendment overruled the case.
- **B:** Correct: state the operative proposition and unresolved reference together.
- **C:** Incorrect: it concerns notice for removal of the Speaker.
- **D:** Incorrect: paragraph 6 remains the adjudicatory source.

Examiner trap 22: Do not present the larger-bench question as already decided.

MCQ 23. Subhash whip

Under Subhash Desai (2023), the whip for Tenth Schedule purposes is appointed by:

A. the Governor after a floor test. B. the largest faction of the legislature party. C. the political party through its authorised structure. D. the Election Commission whenever a symbol dispute exists.

Answer: C. the political party through its authorised structure.

Option-specific explanations:

- **A:** Incorrect: the Governor does not appoint party whips.
- **B:** Incorrect: headcount alone cannot create authorisation.
- **C:** Correct: organisational party authority controls.
- **D:** Incorrect: symbol jurisdiction does not appoint the legislative whip.

Examiner trap 23: Political party and legislature party have different constitutional functions.

MCQ 24. Parallel tracks

Which pair may proceed on separate legal tracks under Subhash Desai?

A. A criminal trial and presidential election petition only. B. A privilege motion and every civil suit only. C. A Governor's party-membership decision and Speaker's symbol decision. D. ECI symbol proceedings and Speaker defection proceedings.

Answer: D. ECI symbol proceedings and Speaker defection proceedings.

Option-specific explanations:

- **A:** Incorrect: it does not answer the Tenth Schedule allocation at issue.
- **B:** Incorrect: the option is unrelated and overbroad.
- **C:** Incorrect: both roles are reversed or invented.
- **D:** Correct: the jurisdictions answer different legal questions.

Examiner trap 24: Parallel proceedings do not mean identical legal tests or binding outcomes.

MCQ 25. Council cap

Which statement on the 91st-Amendment ministry caps is correct?

A. Union ministers including the Prime Minister cannot exceed 15% of Lok Sabha; State ministers including the Chief Minister cannot exceed 15% of Assembly, with a State minimum of 12. B. Both Union and State ministries have a fixed minimum of twelve. C. The cap is ten per cent for every House. D. The cap is calculated from the total strength of both Houses combined.

Answer: A. Union ministers including the Prime Minister cannot exceed 15% of Lok Sabha; State ministers including the Chief Minister cannot exceed 15% of Assembly, with a State minimum of 12.

Option-specific explanations:

- **A:** Correct: this states Articles 75(1A) and 164(1A) accurately.
- **B:** Incorrect: the twelve-minister minimum is only for States.
- **C:** Incorrect: the constitutional percentage is fifteen.
- **D:** Incorrect: the reference House is Lok Sabha or the State Assembly.

Examiner trap 25: Separate the State minimum from the common fifteen-per-cent ceiling.

MCQ 26. Minister bar end point

A party member disqualified under paragraph 2 contests and is declared elected before the old House term expires. The ministerial disability:

A. always continues for life. B. ends on the date the person is declared elected, under the earlier-event formula. C. ends only if the former party consents. D. never applies to State ministers.

Answer: B. ends on the date the person is declared elected, under the earlier-event formula.

Option-specific explanations:

- **A:** Incorrect: the bar is temporary and textually bounded.
- **B:** Correct: declared re-election is the earlier terminating event.
- **C:** Incorrect: party consent is not the constitutional endpoint.
- **D:** Incorrect: Article 164(1B) supplies the State rule.

Examiner trap 26: The endpoint is old-term expiry or earlier declared re-election, whichever comes first.

MCQ 27. Article 361B

Article 361B principally concerns:

A. the size of the Union Council of Ministers. B. the Speaker's removal procedure. C. a temporary bar on remunerative political posts for the specified disqualified member. D. the Election Commission's power over party symbols.

Answer: C. a temporary bar on remunerative political posts for the specified disqualified member.

Option-specific explanations:

- **A:** Incorrect: Article 75(1A) supplies the Union ministry cap.
- **B:** Incorrect: Speaker removal is governed elsewhere.
- **C:** Correct: Article 361B targets publicly remunerated political reward.
- **D:** Incorrect: symbol power comes from the Symbols Order framework.

Examiner trap 27: Ministerial bars and remunerative-political-post bars are related but separately located.

MCQ 28. Whip reform

Which proposition is a reform proposal rather than present Tenth Schedule law?

A. A party member may be disqualified for voluntarily giving up membership. B. An independent is disqualified on joining a political party. C. The Speaker or Chairman ordinarily decides paragraph 6 questions. D. Whip-backed disqualification should be confined to confidence, money/supply or comparable survival votes.

Answer: D. Whip-backed disqualification should be confined to confidence, money/supply or comparable survival votes.

Option-specific explanations:

- **A:** Incorrect: this is current paragraph 2(1)(a).
- **B:** Incorrect: this is current paragraph 2(2).
- **C:** Incorrect: this is current paragraph 6.
- **D:** Correct: narrow-whip models are recommended reforms, not enacted limits.

Examiner trap 28: Status-label reform recommendations; do not constitutionalise them by repetition.

MCQ 29. Coalition versus merger

Two parties form a post-election governing coalition but retain separate organisations. This is:

A. not automatically a paragraph 4 merger. B. always a merger if they share a common minimum programme. C. a merger only when the Governor calls a floor test. D. proof that every member voluntarily gave up membership.

Answer: A. not automatically a paragraph 4 merger.

Option-specific explanations:

- **A:** Correct: cooperation does not itself merge original political parties.
- **B:** Incorrect: a programme is political evidence, not the paragraph 4 test.
- **C:** Incorrect: floor-test power does not define organisational merger.
- **D:** Incorrect: collective government support is not automatic para 2(1)(a) proof.

Examiner trap 29: Merger changes party identity; coalition coordinates distinct parties.

MCQ 30. Sita Soren boundary

Why is Sita Soren (2024) only a boundary case here?

A. It restored the one-third split defence. B. It concerns bribery and legislative privilege, not the elements of paragraph 2 defection. C. It transferred defection petitions to criminal courts. D. It held every whip unconstitutional.

Answer: B. It concerns bribery and legislative privilege, not the elements of paragraph 2 defection.

Option-specific explanations:

- **A:** Incorrect: the case did not amend the Tenth Schedule.
- **B:** Correct: its privilege holding prevents bribery immunity but is not a defection test.
- **C:** Incorrect: it did not change paragraph 6 allocation.
- **D:** Incorrect: it did not invalidate party directions.

Examiner trap 30: Do not merge criminal bribery, privilege and defection into one doctrine.

MCQ 31. Court role

A High Court receives a petition asking it to decide disputed defection facts before the Speaker acts. The ordinary constitutional approach is:

A. the court always conducts the first trial. B. the President must decide on Cabinet advice. C. the court ordinarily allows paragraph 6 first-instance adjudication, while retaining review and remedies against disabling inaction. D. the petition automatically becomes a symbol dispute.

Answer: C. the court ordinarily allows paragraph 6 first-instance adjudication, while retaining review and remedies against disabling inaction.

Option-specific explanations:

- **A:** Incorrect: courts are not the routine first-instance forum.
- **B:** Incorrect: this is not the paragraph 6 process.
- **C:** Correct: allocation, review and anti-delay remedies coexist.
- **D:** Incorrect: factual overlap does not change jurisdictional character.

Examiner trap 31: Judicial review is not synonymous with judicial first-instance adjudication.

MCQ 32. Reform synthesis

Which reform package most directly answers the law's principal institutional weaknesses?

- A. Restore the one-third split and eliminate judicial review. B. Let the Governor choose the authorised political party.
C. Make every dissenting speech a disqualification ground. D. Narrow high-stakes whips, neutral time-bound adjudication, clearer merger proof and stronger internal party democracy.

Answer: D. Narrow high-stakes whips, neutral time-bound adjudication, clearer merger proof and stronger internal party democracy.

Option-specific explanations:

- **A:** Incorrect: both elements reverse constitutional lessons.
- **B:** Incorrect: the Governor cannot decide intra-party leadership.
- **C:** Incorrect: this would exceed paragraph 2 and suppress deliberation.
- **D:** Correct: it addresses freedom, delay, merger engineering and party authorisation.

Examiner trap 32: A credible reform must address both substantive reach and decision architecture.

PYQS AND ANSWER PRACTICE

Verified relevant UPSC PYQs

PYQ 1 - UPSC CSE Prelims 2022, GS Paper I, Question 16

Exact question: With reference to anti-defection law in India, consider the following statements:

1. The law specifies that a nominated legislator cannot join any political party within six months of being appointed to the House.
2. The law does not provide any time-frame within which the presiding officer has to decide a defection case.

Which of the statements given above is/are correct?

- A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official key: B - 2 only.

Solution: Statement 1 is incorrect. A nominated member who was unaffiliated may join within six months from taking the seat; joining after six months attracts paragraph 2(3). Statement 2 is correct because the Schedule has no express decision deadline. Keisham's ordinary three-month norm is judicial doctrine, not bare text.

PYQ 2 - UPSC CSE Prelims 2025, GS Paper I, Question 88

Exact question: Consider the following statements:

I. If any question arises as to whether a Member of the House of the People has become subject to disqualification under the Tenth Schedule, the President's decision in accordance with the opinion of the Council of Union Ministers shall be final. II. There is no mention of the word 'political party' in the Constitution of India.

Which of the statements given above is/are correct?

A. I only B. II only C. Both I and II D. Neither I nor II

Official key: D - Neither I nor II.

Solution: Statement I is incorrect because paragraph 6 assigns the initial question to the Speaker, not the President acting on ministerial advice. Statement II is incorrect because the Tenth Schedule repeatedly uses 'political party'. Article 103 procedure for Article 102(1) disqualifications is a different route.

PYQ 3 - UPSC CSE Mains 2023, GS-II, Question 5 (supporting presiding-officer route)

Exact question: "Discuss the role of Presiding Officers of state legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices." **10 marks | 150 words**

Official-key discipline: UPSC does not publish an official descriptive model answer. The following is an original examiner-oriented solution, not an official key.

Model solution: State presiding officers are procedural guardians: they recognise speakers and motions, enforce rules, maintain order and protect both majority decision and opposition scrutiny. Their constitutional functions include voting arrangements under Article 189, Money Bill certification under Article 199 and defection adjudication under paragraph 6 of the Tenth Schedule.

These powers make impartiality operational rather than ceremonial. Kihoto treats the Speaker deciding defection as a reviewable tribunal; Keisham requires ordinarily prompt disposal. Reasoned rulings, equal opportunity, disclosed procedure and timely decisions prevent discretion from becoming a partisan device.

Yet continuing party affiliation creates an appearance-of-bias risk. Best democratic practice therefore requires transparent rulings, convention-based detachment and neutral, time-bound defection adjudication subject to judicial review. The office should facilitate deliberation and lawful majority formation, not manufacture either.

Original Mains practice with model solutions

Mains 1 - 10 marks | 150 words

Question: Explain the paragraph 2 grounds and the distinct treatment of party, independent and nominated members.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Paragraph 2 protects the political identity through which a legislator enters the House, but it uses category-specific rules. A party member is disqualified by voluntarily giving up membership or by voting or abstaining contrary to an authorised party direction without prior permission and without condonation within fifteen days. Ravi S. Naik confirms that voluntary giving up may be inferred from proved conduct, not only formal resignation.

An independent member is disqualified on joining any political party after election because the electorate chose a non-party candidate. A nominated member may join a party within six months from taking the seat; joining after that period attracts disqualification. If already affiliated at nomination, deemed belonging follows that party.

Thus, the Schedule does not punish every dissent. It applies precise grounds, permissions and time rules, subject to paragraph 4 merger, paragraph 5 exemption, fair adjudication and judicial review.

Mains 2 - 10 marks | 150 words

Question: Distinguish political party, legislature party and original political party under the Tenth Schedule.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

The political party is the organisational and electoral entity that sets up candidates and authorises legislative directions. The legislature party is the House-specific group of all members who belong to that political party. The original political party is the party to which a member belongs for paragraph 2(1).

The distinction has two consequences. First, paragraph 2 discipline flows from the political party. Subhash Desai held that a breakaway legislature-party majority cannot appoint a rival whip merely through headcount; the Speaker must identify authorisation from the party constitution and organisation. Second, legislature-party numbers matter within paragraph 4: not less than two-thirds must agree to the merger for the deeming protection.

Therefore, two-thirds is not a free-standing power to create a new party. Organisational merger, legislative threshold and evidentiary inquiry must be separately established.

Mains 3 - 15 marks | 250 words

Question: Discuss Kihoto Hollohan's constitutional settlement on the Tenth Schedule and judicial review.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Kihoto Hollohan preserved anti-defection while preventing the Tenth Schedule from becoming an enclave beyond the Constitution. The majority substantially upheld the 52nd Amendment and paragraph 6, rejecting the claim that entrusting the Speaker or Chairman necessarily destroyed the basic structure.

However, paragraph 7 attempted to exclude every court from matters connected with Schedule disqualification. Because that ouster affected the jurisdiction of the Supreme Court and High Courts under Articles 136, 226 and 227, the proviso to Article 368 required ratification by at least half the States. The amendment lacked that ratification; paragraph 7 was therefore invalid without invalidating the remainder.

Kihoto also characterised the presiding officer as a tribunal when deciding defection. The order is reviewable for constitutional mandate violation, mala fides, breach of natural justice and perversity. Review is supervisory, not a routine appeal on every factual disagreement. Ordinarily it follows the final decision, though grave and irreversible interlocutory consequences may justify exceptional intervention.

The settlement is therefore dual: first-instance institutional allocation remains with the House's presiding officer, but finality cannot extinguish basic-structure judicial review. Later delay cases show the qualification: review corrects illegality, yet a partisan or inactive adjudicator can still distort legislative majorities before review arrives.

Mains 4 - 15 marks | 250 words

Question: Analyse resignation, defection disqualification and the 91st-Amendment office disabilities.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Resignation and defection are separate constitutional inquiries. A member may tender resignation under Article 101 or 190, while paragraph 6 may simultaneously require decision on earlier conduct under the Tenth Schedule. The sequence matters because a later resignation cannot retrospectively erase a completed paragraph 2 ground.

Shrimanth Balasaheb Patil held that the Speaker retained jurisdiction over antecedent defection despite resignations. This blocks the resign-and-escape route. Yet the Speaker exceeded constitutional authority by barring the members from contesting elections for the remainder of the Assembly term. Tenth Schedule disqualification vacates the seat; it does not itself create a term-long electoral prohibition.

The 91st Amendment separately blocks immediate rewards. Articles 75(1B) and 164(1B) bar the specified paragraph-2-disqualified party member from ministership. Article 361B bars a remunerative political post. Each disability runs from disqualification until the old term would expire or, if the person contests earlier, the date declared elected, whichever occurs first.

Thus, the framework combines anti-evasion with bounded consequences. Resignation cannot defeat jurisdiction, but neither the Speaker nor political criticism may invent a punishment beyond the constitutional text. Re-election may end the temporary office disability, exposing why resignation strategies remain a practical reform concern.

Mains 5 - 20 marks | 250 words

Question: Critically examine whether the anti-defection law protects stability at the cost of representative democracy.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

The Tenth Schedule answers a genuine democratic injury: legislators elected on a party mandate should not trade allegiance and office to overturn government. Paragraph 2, the deletion of the one-third split and the 91st-Amendment reward bars have reduced open individual floor-crossing and strengthened cabinet stability.

The same design creates costs. Paragraph 2(1)(b) does not confine disqualifying directions to confidence or Money Bills. Broad whips can suppress policy dissent, committee-minded scrutiny and constituency representation. Leadership thereby gains control without a parallel constitutional guarantee of internal party democracy. Paragraph 4 also channels strategy towards two-thirds group engineering, while resignation tactics may alter the effective majority before adjudication.

Institutional design compounds the problem. The Speaker is both a political actor and paragraph 6 tribunal. Kihoto preserves review, Rajendra Singh Rana controls disabling inaction, and Keisham states an ordinary three-month norm, yet delay can still decide political outcomes before legality is settled. Subhash Desai restores organisational party authority over the whip but cannot itself democratise that authority.

The answer is calibrated reform, not repeal: confine disqualification-backed whips to government-survival and supply votes; create a neutral, time-bound adjudicator subject to review; require transparent party authorisation; and clarify that paragraph 4 demands genuine merger proof, not headcount alone. Stability is constitutionally valuable, but it should be secured by precise discipline rather than legislative servitude.

Mains 6 - 20 marks | 250 words

Question: Using Subhash Desai (2023), analyse the distribution of authority during an intra-party legislative conflict.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Subhash Desai rejects the idea that one institution or legislative faction controls every consequence of an intra-party conflict. Authority is distributed by function.

The political party, acting through its constitutionally relevant organisational structure, appoints the whip and leader. A legislature-party faction cannot manufacture that authority merely by assembling more legislators. The Speaker then identifies the authorised political party from its constitution, records and leadership material and decides Tenth Schedule petitions under paragraph 6. Courts supervise legality but do not ordinarily replace this first-instance fact-finding.

The Election Commission follows a separate track under the Symbols Order. It may decide a symbol dispute while disqualification petitions remain pending because symbol entitlement and paragraph 2 liability ask different questions. The Governor performs constitutional functions but cannot determine intra-party leadership. In the Maharashtra facts, the Court found no objective material for the impugned floor-test call based merely on internal dissent.

The judgment neither disqualified members itself nor restored the former government, whose Chief Minister had resigned. It also referred the correctness of Nabam Rebia's removal-notice restriction for larger-bench reconsideration; no later official merits ruling was located through 8 September 2026.

The case therefore supplies an institutional firewall: party authorises, Speaker adjudicates, ECI decides symbols, Governor stays within constitutional limits and courts review. Accurate answers must preserve these parallel jurisdictions rather than letting legislative headcount decide them all.